

25SMCV01679 25SMCV01679

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25SMCV01679 Hearing Date: June 26, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

HESAM DEAN

YAZDANPANAHA,

Plaintiff,

v.

RAYMOND D. MCELISH; MCELISH LAW FIRM,
PC, a California Corporation; and DOES 1-15, inclusive,

Defendant.

Case No.:

25SMCV01679

Hearing Date: June 26, 2026

[TENTATIVE]

order RE:

Motion to amend complaint to

add SCARLET MEHRI as

additional defendant

BACKGROUND

This

case arises from a breach of contract.

Plaintiff Hesam Dean

Yazdanpanah ("Plaintiff") filed their Complaint on April 2, 2025. On June 10, 2025, defendant Mcelfish Law Firm, PC ("Defendant") filed a demurrer to the Complaint which was subsequently sustained with leave to amend. On September 17, 2025, Plaintiff filed a First Amended Complaint. On November 20, 2025, Defendant's demurrer to the First Amended Complaint was sustained with leave to amend. On December 2, 2025, Plaintiff filed the Second Amended Complaint ("SAC"). On May 7, 2026, Defendant's subsequent demurrer to the Second Amended Complaint was sustained without leave to amend. Defendant's motion to strike portions of the Second Amended Complaint was granted without prejudice to allow Plaintiff to bring a motion for leave to amend.

On

May 15, 2026, Plaintiff filed the instant Motion for Leave to Amend to add Scarlett Mehri as a defendant on a cause of action for declaratory relief.

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests judicial notice

of Exhibit 1: "Plaintiff Yazdanpanah's First Amended Responses to Defendant's Requests for Admissions, Set No. One, RFA Nos. 1, 5, and 8"; and Exhibit 2: "Plaintiff Yazdanpanah's First Amended Responses to Defendant's Form Interrogatories, Set No. One, Form Interrogatory No. 17.1". The Court denies the unopposed request for judicial notice because the request does not include material that may be judicially noticed pursuant to Evid. Code, §§ 452 and 453.

LEGAL STANDARD

Code of

Civ. Proc. § 473(a)(1), provides, in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

Under

California Rules of Court Rule, Rule 3.1324, subdivision (a), a motion to amend a pleading shall:

- (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and
- (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

In

addition, under California Rules of Court, Rule 3.1324, subdivision (b), a separate declaration must accompany the motion and must specify:

- (1) the effect of the amendment;
- (2) why the amendment is necessary and proper;
- (3) when the facts giving rise to the amended allegations were discovered; and

(4) the reasons why the request for amendment was not made earlier.

The Court's discretion to grant leave "should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.) Ordinarily, the Court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature. The Court, however, does have discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. (See California Casualty General Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 281 (overruled on other grounds by Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390).)

DISCUSSION

The Code requires that a motion to amend include a separate declaration specifying: the effect of the amendment; why the amendment is necessary and proper; when the facts giving rise to the amended allegations were discovered; and the reasons why the request for amendment was not made earlier. Plaintiff has not included the separate declaration, and as such, their motion is procedurally defective. (See Motion for Leave to Amend.)

Even if the Court were to overlook this deficiency, it would still deny the motion because Plaintiff has not explained how adding Ms. Mehri to the Third Amended Complaint ("TAC") would remedy defects the Court found when sustaining Defendant's demurrer to the SAC. The Court sustained Defendants' demurrer to the SAC on the grounds that (1) the SAC exceeds the scope of the Court's order allowing amendment and violates the sham pleading rule; (2) based on Plaintiff's discovery responses, there is no written agreement with Ms. Mehri authorizing the split in fees, violating California Rule of Professional Conduct 2-200; (3) the alleged oral contingency fee split agreement between Plaintiff and Defendants violates Bus. & Prof. Code §6147; (4) the Court lacks jurisdiction over the subject matter unless and until Plaintiff has established

the existence, validity and enforceability of a fee lien... and (5) the complaint fails to state a claim because it does not show there was mutual assent; it does not attach a copy of the contract, or state the terms verbatim, and it does not plead the dates of accrual and expiration of the statute of limitations with sufficient clarity. (See May 7, 2026, Minute Order.) Plaintiff does not address these defects by adding Ms. Mehri to the action.

Moreover,

in the proposed TAC, Plaintiff's causes of action for breach of contract and declaratory relief against Ms. Mehri are not sufficiently stated. Plaintiff alleges Ms.

Mehri signed a written fee agreement which Plaintiff does not provide a signed copy of. (Motion, Exh. B.) An action based on "alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference". (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.)

Plaintiff

largely relies on Jacobs v. Papez (2026) 119 Cal.App.5th 123, in which the Court held that "bringing a single action for declaratory relief against both the clients and a competing attorney lien claimant is a permissible way for an attorney to enforce an attorney lien claim on the proceeds of a settlement or judgment". (Jacobs, supra, 119 Cal.App.5th at 131.) However, reliance on this case law, and adding Ms. Mehri as a defendant still does not remedy defects in the pleadings or procedural defects present in the instant motion.

Lastly,

as pointed out by Defendant in their opposition, Plaintiff's own admissions reveal that they are not in possession of a signed retainer agreement with Ms. Mehri. (Exh. 1, Amended Responses to RFA Nos. 1, 5, 8.) Thus, it is within the Court's discretion to deny Plaintiff's Motion for Leave to Amend.

CONCLUSION

Based on the foregoing, the Court DENIES Plaintiff's motion for leave to amend complaint.

IT IS SO ORDERED.

DATED: June 26, 2026 _____

Edward

B. Moreton, Jr.

Judge

of the Superior Court